

25STLC02051 25STLC02051

County: los-angeles

Division: Civil Law and Motion

Department: 26

Hearing date: 2026-07-27

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Case Number: 25STLC02051 Hearing Date: July 27, 2026 Dept: 26

TENTATIVE

RULING:

Plaintiff Baldwin Mader Law Group's Motion to Continue Trial
is denied.

Analysis:

On March 14,
2025, Plaintiff Baldwin Mader Law Group ("Plaintiff")
filed this action for breach of contract against Defendant Jerry Ostrin ("Defendant").

On June 11, 2026, Plaintiff filed the instant
Motion to Continue Trial seeking a continuance of "at least three
months." (Motion, p.3.)

On June 15,
2026, the Court on its own motion issued an order continuing the trial date
from September 11, 2026 to November 25, 2026, on account of the Court being
unavailable on September 11, 2026. (Minute Order, 06/15/26.)

Discussion

Plaintiff moves for a trial
continuance of three months pursuant to Cal. Rules of Court rule 3.1332, which
provides "[a]lthough continuances of trials are disfavored, each request for a
continuance must be considered on its own merits. The Court may grant a
continuance only on an affirmative showing of good cause requiring the

continuance.” (Cal. Rules of Court, Rule 3.1332, subd. (c).) Grounds for a continuance include the unavailability of trial counsel because of death, illness, or other excusable circumstances. (Cal. Rules of Court, Rule 3.1332, subd. (c)(3).)

The court may look to the following factors in determining whether a trial continuance is warranted: (1) proximity of the trial date; (2) whether there was any previous continuance of trial due to any party; (3) the length of the continuance requested; (4) the availability of alternative means to address the problem that gave rise to the motion; (5) the prejudice that parties or witnesses will suffer as a result of the continuance; and (6) whether trial counsel is engaged in another trial. (See generally, Cal. Rules of Court, Rule 3.1332, subd. (d)(1)-(11).) Additional factors for the court to consider include: a party’s excused inability to obtain essential testimony, documents, or other material evidence despite diligent efforts; whether all parties have stipulated to a continuance; and any other fact or circumstance relevant to the fair determination of the motion or application. (Cal. Rules of Court, Rule 3.1332, subds. (c), (d).)

The Court denies the Motion as moot because the requested continuance has already been granted.

Conclusion

Plaintiff Baldwin Mader Law Group’s Motion to Continue Trial is denied.

Moving party to give notice.